ISMUN 4.0
BACKGROUND GUIDE



UNITED NATIONS GENERAL ASSEMBLY

Agenda: *Preventing Cyber Warfare: Setting Global Rules for Digital Conflict, Attribution, and the Protection of Civilian Critical Infrastructure.*

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LETTER FROM THE EXECUTIVE BOARD

Dear Delegates,

A very warm welcome to all of you!

On behalf of the Executive Board, it is our pleasure to welcome you to the United Nations General Assembly. We hope the committee becomes more than just a series of speeches and resolutions, and instead becomes a space where you can question ideas, challenge perspectives, and genuinely enjoy debating with one another.

The Background Guide is meant to give you a starting point for your preparation, not a boundary for your research. We encourage you to look beyond what is provided, understand your country's position, and come into committee ready to think beyond the obvious.

As your Executive Board, we will value substance, diplomacy, and originality. Do not be afraid to challenge an argument, change your approach when the discussion demands it, or bring an idea that has not been heard before. At the same time, remember that good diplomacy is as much about listening and collaborating as it is about speaking.

Most importantly, don't forget to enjoy yourselves. Some of the best committee moments come from the unexpected — an argument you hadn't considered, a collaboration you didn't plan for, or simply a conversation that stays with you after the committee ends.

We look forward to seeing you in committee and, more importantly, seeing what you bring to it.

Warm regards,

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INTRODUCTION TO THE COMMITTEE

The United Nations General Assembly (UNGA) is the UN's main deliberative and representative body, bringing together all 193 Member States to discuss issues that affect the international community. Established in 1945 under the UN Charter, the General Assembly provides every Member State with an equal vote, regardless of its size, political influence, or economic strength. Its work is carried out through plenary sessions and six main committees, where states debate, negotiate, and adopt resolutions on matters ranging from international peace and security to emerging global challenges.

While most General Assembly resolutions are not legally binding in the same way as Security Council decisions under Chapter VII of the UN Charter, they carry significant political and diplomatic weight. The Assembly can establish mechanisms, request reports and studies, encourage international cooperation, and contribute to the development of international norms. This makes it an important forum for issues where international rules are still evolving.

Cyber warfare is one such area. Digital operations can cross borders within seconds and affect governments, businesses, hospitals, financial systems, energy networks, and other civilian infrastructure. Yet states continue to differ over questions of attribution, sovereignty, responsibility, and the application of international law to cyberspace. Accordingly, delegates should focus on practical and internationally acceptable measures that remain within the General Assembly's mandate, while balancing national security with the protection of civilians and critical infrastructure.

INTRODUCTION TO THE AGENDA

The world today depends on digital systems for almost everything. Governments communicate through networks, hospitals rely on digital records and connected equipment, banks process transactions electronically, and essential services such as electricity, water, transport, and telecommunications increasingly depend on computer systems. This growing dependence has created a new area of conflict: cyberspace.

Cyber warfare refers broadly to the use of cyber operations by states or state-linked actors to disrupt, damage, manipulate, or gain unauthorized access to another state's systems. Unlike conventional warfare, cyber operations do not require soldiers to cross a physical border. An operation can be launched from thousands of kilometres away, routed through several countries, and discovered only after its effects have already spread. This makes identifying who is responsible particularly difficult.

Attribution is therefore one of the central challenges of digital conflict. A cyberattack may be technically traced to a particular server or network without proving who actually ordered or carried out the operation. States may also have different interpretations of what constitutes sufficient evidence before publicly accusing another country. Without reliable attribution, responding to an attack becomes complicated, raising concerns about escalation, retaliation, and mistaken accusations.

The protection of civilian critical infrastructure adds another layer to the issue. Hospitals, energy grids, water systems, financial networks, telecommunications, and transport infrastructure are essential to everyday life. An attack against such systems can affect civilians even when they are not the intended target. The difficulty lies in establishing where legitimate national security operations end and unacceptable harm to civilian systems begins.

This agenda therefore asks delegates to look beyond individual cyberattacks and consider the larger framework governing digital conflict. The challenge is to create rules that are clear enough to provide accountability, flexible enough to keep pace with changing technology, and realistic enough for states with very different capabilities and security interests to implement.

IMPORTANT TERMINOLOGY

- **Cyber Operation:** An operation conducted through digital systems or networks to access, disrupt, manipulate, damage, or defend information or infrastructure.
- **Attribution:** The process of identifying the actor responsible for a cyber operation based on technical, intelligence, and contextual evidence.
- **Critical Infrastructure:** Systems and services essential to the functioning of society, including electricity, water, healthcare, telecommunications, transportation, and financial services.
- **Cyber Resilience:** The ability of systems and institutions to withstand, respond to, recover from, and adapt to cyber incidents.
- **State Responsibility:** The principle that a state may be held internationally responsible when cyber conduct attributable to it violates an applicable international obligation.
- **International Humanitarian Law (IHL):** International law governing conduct during armed conflict, including protections for civilians and restrictions on methods and means of warfare.
- **Cyber Deterrence:** Measures intended to discourage hostile cyber activity by increasing its anticipated costs or reducing its expected benefits.

BACKGROUND TO THE AGENDA

1. The Emergence of Cyberspace as a Security Domain

As governments, businesses, and societies became increasingly dependent on digital systems, cyberspace gradually became an important part of national security. Initially, cyber incidents were largely understood as issues of data theft, online crime, or disruption of individual networks. However, the growing digitalization of essential services created a new reality: **disruption in cyberspace could have consequences in the physical world.**

The **2007 cyberattacks against Estonia** were among the first major incidents to demonstrate this shift. Government institutions, banks, media organizations, and other online services were disrupted, highlighting how a highly connected society could be affected without a conventional military attack.

2. From Cyberattacks to Physical Consequences

The discovery of **Stuxnet in 2010** marked an important development in cyber conflict. Unlike attacks focused primarily on information or websites, Stuxnet was designed to interfere with industrial equipment. It demonstrated that malicious code could potentially produce **physical effects through digital systems**.

This concern became even more relevant with attacks against **Ukraine's electricity infrastructure in 2015 and 2016**. These incidents demonstrated that cyber operations could interfere with services on which civilians depend, including electricity.

They showed that as electricity grids, water systems, transportation networks, hospitals, and telecommunications become digitally connected, **protecting cyberspace increasingly means protecting people's everyday lives.**

3. The Globalization of Cyber Threats

The events of **2017**, particularly WannaCry and NotPetya, demonstrated another characteristic of modern cyber conflict: **cyberattacks do not necessarily remain within national borders.**

The WannaCry ransomware attack affected organizations across numerous countries, including healthcare institutions. NotPetya, initially associated with Ukraine, spread internationally and disrupted organizations far beyond its apparent target.

A vulnerability exploited in one location can quickly affect organizations, businesses, and civilians elsewhere. Consequently, cybersecurity became increasingly recognized as a matter of **international cooperation rather than solely a domestic responsibility.**

4. The Challenge of Attribution

Unlike conventional attacks, cyber operations can be routed through infrastructure located in several countries, use compromised computers belonging to innocent third parties, or employ techniques designed to imitate another actor.

The international community therefore faces a difficult balance. States need sufficiently reliable attribution before publicly assigning responsibility or considering a response, but waiting for complete certainty may allow harmful activities to continue. The attribution problem consequently affects not only cybersecurity, but also **international accountability, state responsibility, and the risk of escalation.**

5. Critical Infrastructure and Civilian Vulnerability

As cyber capabilities developed, attention increasingly shifted toward the systems that ordinary people depend upon.

The **2021 Colonial Pipeline ransomware attack** illustrated how disruption to privately operated infrastructure could have wider economic and societal consequences.

These developments highlighted a fundamental concern for the international community: **civilian infrastructure can become vulnerable even when civilians are not the intended target.**

Hospitals, energy networks, water systems, financial institutions, telecommunications, and transportation systems are deeply interconnected. An

attack against one system can therefore create consequences far beyond its original target.

6. Cyber Operations and Armed Conflict

Cyber operations can be used to disrupt communications, gather intelligence, interfere with infrastructure, or support broader military objectives. At the same time, their effects may extend beyond military targets and affect civilian systems.

This has intensified debates over the application of **international humanitarian law (IHL)** and the principles of distinction, proportionality, and protection of civilians to cyber operations during armed conflict.

The central concern is not simply whether cyber operations are possible during conflict, but **where the international community should draw the line between legitimate military activity and unacceptable harm to civilians.**

INTERNATIONAL LEGAL FRAMEWORK

1. The UN Charter

The **UN Charter remains the foundation** for regulating state conduct in cyberspace. UN discussions have affirmed that the Charter applies to states' use of ICTs, including principles concerning the peaceful settlement of disputes, the prohibition on the use of force, and the right to self-defence.

The challenge is that the Charter was written long before modern cyber technologies existed. States therefore continue to debate **how traditional principles should apply to different types and levels of cyber operations**.

2. Sovereignty and Non-Intervention

States retain sovereignty over their territory and systems, and the principle of **non-intervention** limits coercive interference in another state's internal affairs.

In cyberspace, however, identifying when an operation crosses these boundaries is difficult. A cyber operation may pass through several countries and use infrastructure belonging to third parties, making traditional ideas of territorial interference harder to apply.

3. State Responsibility and Attribution

A state can be internationally responsible when conduct attributable to it violates an international obligation.

Finding the computer or network from which an attack originated does not necessarily identify the person, group, or state behind it. This makes establishing responsibility particularly difficult and creates concerns about unjustified retaliation or escalation.

4. International Humanitarian Law

When cyber operations occur during an armed conflict, **International Humanitarian Law (IHL)** becomes relevant. Its fundamental principles,

including **distinction, proportionality, and precautions**, are intended to protect civilians and civilian objects.

5. UN Norms and Responsible State Behaviour

The UN has developed **voluntary, non-binding norms** to encourage responsible state behaviour in cyberspace. The 2013 and 2015 GGE reports, followed by the 2021 OEWG process, affirmed that international law applies to cyberspace while also developing norms, confidence-building measures, and capacity-building initiatives.

The framework therefore has two layers: **existing international law provides the legal foundation, while UN norms and mechanisms help states clarify and implement responsible behaviour.** The UN's 2021–2025 OEWG further described this as an evolving framework and called for continued development of common understandings.

KEY CONCEPTS

1. Rules for Digital Conflict

The absence of universally agreed, detailed rules specifically governing cyber conflict creates uncertainty about what states may legitimately do during periods of tension or armed conflict.

A key question is whether existing international law is sufficient or whether states need **additional rules specifically addressing cyber operations**, particularly those that cause significant disruption without producing conventional physical destruction.

2. Protection of Civilian Critical Infrastructure

The central concern is how states can ensure that civilian infrastructure remains protected during both peacetime and armed conflict, particularly when civilian and military systems may share networks or infrastructure.

3. Cyber Operations Below the Threshold of Armed Conflict

Not every hostile cyber operation amounts to an armed attack or traditional act of warfare. States may conduct activities such as **espionage, disruption, or influence operations** without causing the level of harm normally associated with conventional armed conflict.

4. Escalation & Retaliation

A cyber incident can create uncertainty about both **who is responsible and how serious the threat actually is**. If a state responds to an incorrectly attributed attack, the situation could escalate unnecessarily.

This makes proportionality, communication between states, confidence-building measures, and mechanisms for managing cyber incidents particularly important.

5. Role of Non-State Actors

Cyber operations are not conducted exclusively by states. **Cybercriminal groups, hacktivists, proxy groups, and other non-state actors** can possess

significant capabilities and may sometimes operate in ways that align with or benefit state interests.

This complicates traditional models of state responsibility and raises questions about how states should respond when non-state actors conduct operations from their territory.

CASE STUDIES

1. Ukraine Power Grid Cyberattacks (2015–2016)

In December 2015, Ukraine experienced a coordinated cyberattack targeting its electricity distribution network, temporarily leaving approximately 230,000 people without electricity. A similar attack occurred in December 2016, further exposing vulnerabilities in industrial control systems.

These incidents demonstrated how cyber operations could extend beyond digital disruption and directly affect essential civilian services. They raised concerns about the protection of critical infrastructure and the potential humanitarian consequences of cyber conflict.

2. ASOS Data-Breach Notification Incident (2026)

In October 2026, customers of British online retailer ASOS received an unauthorised notification through the company's app stating that attackers had compromised a Snowflake instance and threatening to leak data unless the company engaged with them. ASOS confirmed that an unauthorised customer notification had been sent and said it was investigating activity involving third-party platforms used for customer communications. The company stated that basic personal information, including names and contact details, may have been accessed, while it did not believe payment-card information or account passwords had been affected.

The threatening message itself did not independently prove that the attackers had obtained the full customer database or compromised Snowflake. As reported by Cybernews, the scope of any data access remained uncertain. The incident illustrates how control of a trusted communications channel can be abused to pressure an organisation, unsettle customers, and cause reputational damage.

3. Ernst & Young Third-Party Platform Breach (2026)

According to Rescana's analysis and reporting cited by it, Ernst & Young (EY) disclosed unauthorised access to a third-party IT service-management or

support-ticket platform used by EY personnel supporting tax-related client work. Documents attached to support tickets were reportedly downloaded during a period in March and April 2026. The material described in breach notices included tax-related documents and sensitive personal and financial information. EY detected anomalous activity in April and began notifying affected individuals and regulators in July.

The third-party vendor was not publicly identified in the analysis. ShinyHunters claimed responsibility and made additional claims about access to other environments, but those claims were not independently confirmed in the cited analysis. Accordingly, the claims about the actor and the full scope of access should not be treated as established facts.

The incident illustrates how helpdesk and IT support platforms can become repositories of sensitive information outside an organisation’s primary data systems. A compromise of a trusted supplier can therefore expose information even when the organisation’s main systems are not reported as directly breached.

QARMA – QUESTIONS A RESOLUTION MUST ANSWER

1. What international rules should govern state conduct during cyber conflict?
2. How should the international community determine when a cyber operation constitutes a use of force or an armed attack?
3. What standard of evidence should be required before attributing a cyber operation to a state?
4. How can states be held accountable when cyber operations are conducted through non-state actors or infrastructure located in third countries?
5. What protections should be provided to civilian critical infrastructure during both peacetime and armed conflict?
6. How can states distinguish legitimate military cyber operations from operations that pose unacceptable risks to civilians?
7. Should existing international law and voluntary norms be strengthened, clarified, or supplemented with new legally binding commitments?
8. What mechanisms can facilitate cooperation between states in investigating and responding to major cyber incidents?
9. How can developing countries strengthen their cyber resilience and participate meaningfully in international cybersecurity cooperation?
10. How can the international community prevent cyber incidents from escalating into broader armed conflict?

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